

CITY CONTRACT # _____

LEASE AGREEMENT

This lease agreement ("Agreement") is made and entered into effective this 1st day of October 2026, by and between the City of Cheyenne, a municipal corporation of the State of Wyoming ("City"), whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, and the Cheyenne Depot Museum, Inc. ("CDM"), a not-for-profit corporation whose address is 121 W 15th St. Ste 300, Cheyenne, Wyoming 82001.

WITNESSETH

WHEREAS, the City of Cheyenne is the owner of the Cheyenne Union Pacific Depot;
and

WHEREAS, the City of Cheyenne and the Cheyenne Depot Museum have operated under a long term lease agreement for over two decades to operate the Depot building and coordinate efforts to host events at the Depot; and

WHEREAS, the terms of the lease agreement need updating to account for changing circumstances;

NOW THEREFORE, for and in consideration of the foregoing recitals and the covenants, and agreements herein, it is mutually understood and agreed between the parties as follows:

1. This agreement supersedes and replaces the agreement between the City and CDM with respect to any obligations of the parties to each other identified in City Contract No. 4739 and City Contract No. 4339.
2. The City hereby leases to CDM the Depot building, located at Capitol Avenue and 15th Street (also known as One Depot Square) for one hundred dollars (\$100.00) per month.
3. The term of this Lease shall be for ten (10) years, beginning on October 1, 2026, and ending on June 30, 2036. The Lease may be renewed for not more than two (2) successive five (5) year periods upon the mutual agreement of the parties.
4. Three (3) office spaces on the east end of the third floor selected by the City shall be available to the City for occupation and use by the City throughout the term of the Agreement. CDM shall establish, collect, and retain rents for leases of all other office, restaurant, and retail space in the Depot building, and the southern exterior patio.
5. CDM controls events in Lobby and establishes, collects, and retains revenue.
6. The City manages events in Depot Plaza in coordination with CDM. CDM may sell beer in the Depot Plaza for "Fridays on the Plaza" and shall pay for the required police

services for all Fridays on the Plaza events. Proceeds from the beer sales shall be used for operation and maintenance of the Depot building. The City shall establish, collect, and retain all other revenue from Fridays on the Plaza and other events in the Depot Plaza.

7. CDM controls parking in lots on 15th street and shall establish, collect, and retain revenue from this activity.

8. CDM controls retail operations in Lobby, and may sublet and establish, collect, and retain revenues from this activity.

9. CDM controls schedule and content of Museum and Lobby exhibits, programs, and services.

10. The City will provide the first early morning snow removal as necessary each day. CDM shall provide for snow removal as necessary throughout the remainder of the day.

11. The City will pay the costs for elevator maintenance, fire monitoring systems, and back flow testing for the Depot building.

12. The City will provide fire and extended insurance coverage and its own liability insurance coverage for the Premises. The City reserves the right to enter the Premises to conduct an insurance-related inspection and/or emergency repairs. The City will not provide coverage for personal property. CDM and other tenants are solely responsible for coverage for personal property. CDM shall provide the City with certificates of insurance evidencing insurance coverage as set forth below.

A. The Certificate of Insurance shall be submitted to and approved by the City of Cheyenne prior to the use or occupancy of the demised premises.

B. Insurance

Type of Coverage	Minimum Limits
Commercial General Liability	\$1,000,000 per Occurrence
(Including Products and Completed Operations; Explosion, Collapse and Underground, if applicable to the hazards of a specific project.)	\$2,000,000 Aggregate
Business Automobile Liability	\$1,000,000 CSL
Workers' Compensation	Statutory
OR	
Employer's Liability	\$500,000 Each Accident
	\$500,000 Each Disease-
	Policy Limit
	\$500,000 Disease/Each
	Employee

C. It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of this Agreement. It shall be an affirmative obligation upon CDM to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

D. The City of Cheyenne shall be named as an additional insured on the insurance policies to be provided by CDM, except workers' compensation, and CDM shall provide a copy of the endorsements providing this coverage.

E. The City has the right to reject a certificate of insurance if an insurance company providing coverage under this Agreement is widely regarded in the insurance industry as financially unstable. Any insurance company providing coverage under this Agreement shall have a minimum A.M. Best rating of A- (excellent).

F. The City has the right to increase the required minimum limit of liability as warranted by an increase in hazard. Examples of increased hazard include, but are not limited to:

- i. Handling of hazardous materials; and
- ii. Activities involving large congregations of people.

G. The City shall have the right to consult with the CDMs' insurers and insurance agents for disclosure of relevant policy information, but the City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or CDMs' obligations hereunder. Disclosure of relevant policy information would specifically involve, but is not limited to:

- i. Exclusions;
- ii. Deductibles; and,
- iii. Claims in progress which could significantly reduce the annual aggregate limit.

H. CDM will be responsible for securing insurance on any personal property owned by CDM and others, which will be located in or on the demised premises.

I. CDM will report any damage to the demised premises or to any improvements located on the demised premises to the City. CDM will also advise the City of any liability claim against the CDM arising out of this Agreement or the use of the demised premises.

J. Except for enforcement of the terms and conditions of this Agreement as between the parties, the City of Cheyenne expressly reserves all immunities and defenses with respect to any claim arising out of this Agreement pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*, and other

applicable law.

13. The City will pay all federal, state, count, and local taxes assessed against the property.

14. The City is responsible for the operation, maintenance, and repair of the Depot Tower Clock and shall be responsible for maintenance and snow removal in the Depot Plaza located to the north of the Premises including walks and access points into the Premises.

15. The City and CDM will cooperate and coordinate exterior decoration activities including, but not limited to, the placement of Christmas lights. CDM is responsible for the Depot building decorations and the City is responsible for the Plaza decorations.

16. CDM agrees to defend, hold harmless and indemnify the City, its officials, employees and authorized volunteers against any and all claims arising during or resulting from CDM's performance of this Agreement, except those claims which are determined to arise from the negligence of the City, its officials, employees and authorized volunteers. The City expressly reserves the right to invoke governmental immunity pursuant to the Wyoming Governmental Claims Act, § 1-39-101, et seq., except as to actions brought by CDM to enforce the terms of this Agreement and/or to resolve any disputes with the City pertaining to this Agreement.

17. CDM shall, at its own expense with respect to the Depot building:

A. Provide routine maintenance on the Premises. Routine maintenance means maintenance repairs necessary as a result of tenant-caused damage. Routine maintenance includes, but is not limited to, repairs to walls, fixtures, carpeting, painting, cleaning, and repairs that are required due to tenant-caused damage;

B. Pay all utility bills promptly; and

C. Except for cosmetic repairs, secure the services of a contractor licensed by the City to perform maintenance and repairs on the Premises. Except for cosmetic repairs, CDM agrees not to make any material improvement, modification, or alteration of the Premises without the express knowledge and written consent of the City. All such improvements made to the Premises will remain with the Premises and become the property of the City at the expiration of this Agreement.

14. City agrees to perform all "extraordinary maintenance and repairs" on the Premises. "Extraordinary maintenance and repairs" means maintenance repairs, not caused by tenant damage, to the systems and structure of the Premises. "Extraordinary maintenance and repairs" includes, but is not limited to, maintenance and repairs of the roof, building structure, electrical system, plumbing system sewer system, heating and cooling systems, etc. Routine repairs include annual fire suppression system inspection, elevator maintenance contract, backflow prevention testing, etc. Routine maintenance shall be performed by the City.

18. CDM agrees not to incur any indebtedness which will, or may become a lien or encumbrance upon the Premises, nor to allow any mechanic's liens, builder's or materialman's liens to be perfected against the Premises.

19. At the conclusion of the lease period, CDM shall return the Premises to the City in the same condition as received, less reasonable wear and tear. Should CDM hold over the use of or continue to occupy the demised premises after expiration of the Agreement, such holding over will be as a tenant at sufferance for which use it shall be liable for any and all damages resulting from such tenancy.

20. This Agreement may not be assigned without the prior written consent of the City.

21. CDM agrees to comply with all laws in the performance of this Agreement.

22. No waiver of default by CDM of any of the terms, covenants or conditions to be performed, kept and observed by COM may be construed as, or operate as, a waiver by the City of any subsequent default of any of the terms, covenants or conditions herein contained to be performed, kept and observed by CDM.

23. CDM covenants that at the expiration of the period for which the Premises are leased to it, or at the earlier termination of the letting thereof, it will quit and surrender the Premises together with fixtures on the property in good state and condition, reasonable wear and tear excepted.

24. CDM covenants for itself, its successors, and assigns that CDM, upon payment of the rent and performance of CDM's other covenants herein, that it shall and may peaceably and quietly have, hold and enjoy the demised Premises during the primary term and any renewal terms thereto.

25. If the leased property or any material part thereof is taken by eminent domain or sold under the threat of the exercise of eminent domain(all of which are herein called "condemnation"), this Agreement will expire on the date when the leased property is taken.

26. OTHER AGREEMENTS:

A. Declaration of Governing Law. This Agreement shall be governed by, construed and enforced in accordance with the laws of the State of Wyoming.

B. Plural, Singular, Gender to be Read in Context. Any word contained in the text of this Agreement shall be read as the singular or the plural and as the masculine, feminine or neuter gender as may be applicable in the particular context.

C. Binding Effect on Parties, Representatives, Successors and Assigns. The provisions of this Agreement shall be binding on and inure to the benefit of the parties, their legal representatives, successors and permitted assigns.

D. Parties Have Relationship of Landlord and Tenant - Not Principal - Agent, Partners or Joint Venturers. Nothing contained in this Agreement shall be deemed or construed to create the relationship of principal and agent, or of partnership or of joint venture, or of any association whatsoever between the City and CDM, it being expressly understood and agreed that neither the computation of rent nor any other provisions contained in this Agreement nor any act or acts of the parties hereto shall be deemed to create any relationship between the City and CDM other than the relationship of landlord and tenant.

E. Captions for Convenience - Not Part of Agreement - Not to Limit or Amplify Agreement. The captions of this Agreement are for convenience only, are not a part of the Agreement, and do not in any way limit or amplify the terms and provisions hereof.

F. Prior Representations Incorporated into Agreement- No Representations, Warranties or Promises by Landlord, Agents or Representatives. All negotiations, considerations, representations and understandings between the parties are incorporated in this Agreement, and CDM acknowledge that the City, its agents and representatives, have made no representations, warranties or promises with respect to the building, the surrounding land, or the demised premises except as may be expressly set forth herein.

G. Entire Agreement - Modification in Writing, Signed and Delivered by Both Parties. This Agreement contains all of the agreements and representations between the parties. None of the terms of this Agreement shall be waived or modified to any extent, except by a written instrument signed and delivered by both parties.

H. Severability of Invalid or Unenforceable Clause - Remainder of Agreement Enforceable - Clause Applicable to Other Persons and Circumstances. If any clause, phrase, provision or portion of this Agreement or the application thereof to any person or circumstance shall be invalid, or unenforceable under applicable law, such event shall not affect, impair or render invalid or unenforceable the remainder of this Agreement, nor any other clause, phrase, provision or portion hereof, nor shall it affect the application of any clause, phrase, provision or portion hereof to other persons or circumstances.

27. The City does not waive any applicable defenses and expressly reserves the right to invoke governmental immunity pursuant to the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*, for any claims arising out of performance of this Agreement.

28. The terms of this Agreement shall apply to and bind the heirs, legal representatives, and assigns the parties hereto.

IN WITNESS WHEREOF, the parties hereto have executed this instrument of the dates below.

CITY OF CHEYENNE, WYOMING

Date

Patrick Collins, Mayor

(SEAL)

Attest:

Kylie Soden, City Clerk

CHEYENNE DEPOT MUSEUM, INC.

Date

Signature

Print Name

Title